

Legislative Problem Statement — Minnesota Digital Due Process Act

Preserving Due Process and Individual Liberty in the Age of Predictive Systems

Executive Summary

Advances in artificial intelligence, predictive analytics, mass data collection, and automated decision systems have created new methods by which governments and institutions may evaluate, classify, monitor, and make decisions about individuals.

Many existing legal protections were developed in an era when information collection was limited by practical constraints. Today, digital systems can aggregate years of behavioral, financial, geographic, biometric, and social information to create detailed profiles and predictions about individuals.

While these technologies may provide significant benefits in public administration, fraud prevention, public safety, and resource allocation, they also create the possibility that individuals may be subjected to adverse actions based not on what they have done, but on what an algorithm predicts they may do.

Current legal frameworks do not clearly address the growing use of predictive systems in consequential governmental decisions.

This proposal articulates a Digital Due Process principle: no individual should be subject to a material adverse governmental action principally or solely on the basis of an automated prediction, risk score, or algorithmic determination without meaningful, documented human review and independent corroborating evidence.

The proposal recommends measurable safeguards including timely notice (except in exigent circumstances, within 30 calendar days), documented Human Review with an opportunity for reconsideration, and agency recordkeeping and implementation planning with at least five-year retention for relevant records.

(Full problem statement is available in the packet
Minnesota_Digital_Due_Process_Packet/03_PROBLEM_AND_EVIDENCE/03_Problem_Statement.md.)